

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

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AYISHA LONG,

PLAINTIFF,

**SECOND AMENDED
COMPLAINT**

-AGAINST-

14-CV-9908 (VEC)

NEW YORK CITY, POLICE OFFICER JAMIE
ROSCINO, POLICE OFFICER ANGEL VAZQUEZ,
POLICE OFFICER RALPH GURR and LIEUTENANT
CHRISTOPHER ZAFFIRO, individually, and in their
capacity as members of the New York City Park Police
Department,

DEFENDANTS.

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PRELIMINARY STATEMENT

1. This is a civil action in which plaintiff, Ms. Ayisha Long (“Ms. Long”), seeks relief for the violation of her rights secured by 42 USC 1983, the Fourth and Fourteenth Amendments to the United States Constitution.
2. The claims arise from an incident on or about September 16, 2014, in which officers of the New York City Police Department (“NYPD”), acting under color of state law, intentionally and willfully subjected Ms. Long to *inter alia* excessive force and false arrest.
3. Plaintiff seeks monetary damages (special, compensatory and punitive) against defendants and an award of costs and attorneys’ fees, and such other and further relief as the Court deems just and proper.

JURISDICTION

4. This action is brought pursuant to 28 USC 1331, 42 USC 1983, and the Fourth and Fourteenth Amendments to the United States Constitution.
5. Venue is laid within the United States District Court for the Southern District of New York in that the events giving rise to the claim occurred within the boundaries of the Southern District of New York.

PARTIES

6. Plaintiff, Ms. Long, is a United States citizen and at all times here relevant resided at 1798 East 174th Street, Second Floor Apartment, Bronx, NY 10472.
7. New York City is a municipal corporation organized under the laws of the State of New York.
8. Police Officer Jamie Roscino (“PO Roscino”), Police Officer Angel Vazquez (“PO Vazquez”), Police Officer Ralph Gurr (“PO Gurr”) and Lieutenant Christopher Zaffiro (“Lt. Zaffiro”) at all times here relevant were members of the NYPD, and are sued in their individual and professional capacities.
9. At all times mentioned, Defendants were acting under color of state law, under color of the statutes, ordinances, regulations, policies, and customs and usages of the City of New York.

FACTUAL ALLEGATIONS

10. Ms. Long is 45 years old and works at All City Management at Hunts point in the Bronx, New York.

11. On or about September 16, 2014, at approximately 7:30 pm, Ms. Long was at home and heard shouting outside of her apartment.
12. Ms. Long went to the front door and heard her son Sidney shouting for her.
13. Ms. Long observed PO Roscino, PO Vazquez and PO Gurr in the park across the street from her apartment.
14. PO Roscino, PO Vazquez and PO Gurr were pushing Ms. Long's son.
15. Ms. Long ran over the street dressed only in her pajamas and in bare feet.
16. Ms. Long informed PO Roscino, PO Vazquez and PO Gurr that she is Sidney's mother.
17. PO Roscino, PO Vazquez and PO Gurr asked Ms. Long to calm Sidney down.
18. At some point Lt. Zaffiro arrived on the scene.
19. Ms. Long spoke to Sidney and tried to calm him down.
20. The police officers then knocked Sidney to the ground.
21. Ms. Long knelt down beside Sidney and again told him to stay calm.
22. PO Roscino, PO Vazquez, PO Gurr and Lt. Zaffiro then grabbed Ms. Long from behind and forced her arms behind her head.
23. PO Roscino, PO Vazquez, PO Gurr and Lt. Zaffiro then slammed Ms. Long against a metal gate and handcuffed her behind her back.
24. The handcuffs were extremely tight and caused Ms. Long severe pain.
25. Ms. Long repeatedly asked PO Roscino, PO Vazquez, PO Gurr and Lt. Zaffiro to loosen the handcuffs, but they refused her requests.
26. Ms. Long was put in the back of a police car.

27. Ms. Long had to ask a neighbor to look after her 8-year-old daughter, who was back in her apartment.
28. Ms. Long was taken to the 41st Precinct and held in a cell wearing only her pajamas and in bare feet.
29. Ms. Long was freezing cold in the cell.
30. The handcuffs were removed from Ms. Long at the precinct.
31. Ms. Long asked to make a phone call to check on her daughter and one of the police officers gave Ms. Long his own cell phone to make the call.
32. After several hours Ms. Long was transferred to Central Bookings.
33. An officer taped a pair of disposable shoes to Ms. Long's feet.
34. Ms. Long was charged with Disorderly Conduct and released from Central Booking at approximately 11:30 am on September 17, 2014.
35. Ms. Long had to return to court, at which time all charges were Adjourned Contemplating Dismissal.
36. Ms. Long continues to feel traumatized by the events of September 16, 2014, and is wary and fearful when she sees police officers.
37. Ms. Long suffered physical injuries as a result of the incident.
38. Mr. Long has suffered a great deal following the incident and continues to feel fear, embarrassment, humiliation, emotional distress, frustration, anxiety and physical pain.

FIRST CAUSE OF ACTION

(42 USC 1983 – False Arrest)

39. Plaintiff repeats and realleges each of the preceding allegations of this Complaint as if fully set forth herein.
40. Defendants have deprived Plaintiff of her civil, constitutional and statutory rights under color of law and are liable to Plaintiff under 42 USC 1983.
41. Defendants have deprived Plaintiff of her right to be free of unreasonable searches and seizures, pursuant to the Fourth and Fourteenth Amendments to the United States Constitution, in that Plaintiff was falsely arrested by Defendants.
42. Defendants confined Plaintiff.
43. Plaintiff was aware of, and did not consent to, her confinement.
44. The confinement was not privileged.
45. Plaintiff has been damaged a result of Defendants' actions in an amount believed to equal or exceed the jurisdictional limit of this Court.

SECOND CAUSE OF ACTION

(42 USC 1983 – Excessive Force)

46. Plaintiff repeats and realleges each of the preceding allegations of this Complaint as if fully set forth herein.
47. Defendants have deprived Plaintiff of her civil, constitutional and statutory rights under color of law and are liable to Plaintiff under 42 USC 1983.
48. Defendants have deprived Plaintiff of her right to be free of unreasonable searches and seizures, pursuant to the Fourth and Fourteenth Amendments to the United States

Constitution, in that Defendants used excessive and unreasonable force in effecting the arrest of Plaintiff.

49. Plaintiff has been damaged as a result of Defendants' actions in an amount believed to equal or exceed the jurisdictional limit of this Court.

THIRD CAUSE OF ACTION

(42 USC 1983 –Denial of Right to a Fair Trial)

50. Plaintiff repeats and realleges each of the preceding allegations of this Complaint as if fully set forth herein.

51. Defendants have deprived plaintiff of her civil, constitutional and statutory rights under color of law and are liable to plaintiff under 42 USC 1983.

52. Defendants have deprived plaintiff of her right to a fair trial, pursuant to the Fifth and Sixth Amendments to the United States Constitution.

53. Defendants created false information likely to influence a jury's decision and then forwarded that information to prosecutors, resulting in plaintiff suffering a deprivation of liberty and a violation of her rights.

54. Plaintiff has been damaged as a result of defendants' actions in an amount believed to equal or exceed the jurisdictional limit of this Court.

JURY DEMAND

55. Plaintiff demands a trial by jury.

By: /S/
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